



To: Lisa Rosi, NY Department of Public Service
From: Environmental Defense Fund and Vehicle-Grid Integration Council
Re: Informal Comments on Updated Queue Management Straw Proposal
Date: December 10, 2024

Dear Ms. Rosi,

Environmental Defense Fund (“EDF”), Interstate Renewable Energy Council (“IREC”), and Vehicle-Grid Integration Council (“VGIC”) respectfully submit the following comments on Con Edison’s Queue Management Straw Proposal that was shared with the Electric Vehicle Infrastructure Interconnection Working Group (“EVIIWG”).¹ While we are generally supportive of efforts to standardize and streamline the EV interconnection process as outlined in the Straw Proposal, we remain concerned that the straw proposal and the EVIIWG more broadly is missing a significant opportunity to consider the role of phased and flexible interconnection agreements. These agreements can provide value to EV charging customers, utilities, and ratepayers as bridging solutions to address temporary distribution grid capacity constraints, and as long-term resources to facilitate more efficient and cost-effective utilization of the distribution grid. In light of this, we make two recommendations. First, the final Queue Management Straw Proposal should include as standard consideration of phased interconnection agreements for EV charging customers whose interconnection request would otherwise require a distribution grid upgrade. Second, the work of the EVIIWG should continue beyond the adoption of the Straw Proposal to more robustly consider the potential, challenges, and solutions for more sophisticated forms of flexible interconnection as a near-term and long-term tool for avoiding distribution grid capacity constraints in New York.

I. Immediate Adoption: Phased Interconnection

As part of the final Queue Management Straw Proposal, expected to be noticed for formal public comment in Q1 2025, the New York utilities should commit to implementing phased interconnection as a standard option for customers with new or upgrading load requiring distribution grid upgrades. Such a policy would require no major operational changes on the part of the utilities and would help unlock for customers grid capacity that exists today, ultimately speeding the interconnection process and supporting achievement of the State’s electrification goals.

Under a phased interconnection agreement, an EV charging customer who submits an interconnection request that cannot be fulfilled without the utility completing a distribution grid upgrade would have two

¹ Case 18-E-0138, *Proceeding on Motion of the Commission Regarding Electric Vehicle Supply Equipment and Infrastructure*, Straw Proposal for Streamlined Queue Management in Electric Vehicle Make-Ready Program and Other Programs (Mar. 15, 2024).

options: (1) They could wait for that upgrade before receiving any electric service; (2) they could take service up to the level that would require the grid upgrade immediately and receive full service once the upgrade is completed. For example, an EV charging customer with a cumulative nameplate capacity of 500 kW can agree to never exceed a limit of 250 kW peak demand, year-round, which can be enforced using a hardware limiter, equipment certified to an accepted standard, or another acceptable solution that supports the underlying project economics of the site. The customer would not be able to exceed their load limit under any circumstances and the utility would step up the customer's load to 500 kW once upstream upgrades are completed. Or, in some cases, a customer with similar characteristics may elect to operate in the long-term under the 250 kW limit. This type of interconnection agreement with a static limit can be easily implemented and trusted, with hardware or other acceptable solutions in place to limit the customer's interim load for the protection of the grid.

Phased interconnection can benefit customers by unlocking existing grid capacity in areas where customers are subject to long interconnection timelines and customers are willing to limit their load in order to receive faster energization. For those under regulatory pressure to transition MHDV and/or LDV vehicles to EVs, phased interconnection can help alleviate some of the financial risks and uncertainty for fleet owners investing and planning for a 100% EV fleet. Fleet owners can have more certainty that they will be able to install their high-capacity chargers sooner by agreeing to limit their load, for example until the utility can provide full service. Critically, the customer—most likely in partnership with a charge management system provider²—retains the flexibility to manage their own load however they choose, so long as they abide by their load limit. For example, the customer may choose to install a portion of their chargers and operate them unconstrained or install either a greater portion or all of their intended chargers and use load management technology to limit their cumulative demand. Customers who are able may accept a range of limiting schemes, such as static load limits that shift only seasonally or fixed schedules that shift throughout the day. Thus, phased interconnections are an ideal solution where utilities are already building—or are planning to build—upstream upgrades to meet new electric load demand and the phased interconnection is an interim, bridge-to-wires solution.

This solution requires little to no operational adjustment by utilities and it has already been used by at least one New York utility to serve EV charging customers. It is also largely similar to “construction service” or “temporary service,” a common practice for many U.S. utilities where construction projects receive partial energization prior to completion and is increased at a later date. Static and seasonally varying flexible EV interconnection agreements do not require utilities to have extensively advanced monitoring or communications technology in place and would not require significant utility operational changes to the

² Note that in practice, the fleet managers themselves may often be partnering with a charge management system provider to conduct the day-to-day management. As such, a customer's ability to interact with this type of management strategy should not be viewed as an impediment to implementation.

utilities' service determination process. As utilities are able, they may introduce simple static block schedules or more granular set schedules for bridging solutions and phased connections.

In a summary of updates to the original Straw Proposal shared with the EVIIWG on October 23, 2024, Con Edison stated that updated Straw Proposal includes a new "operations innovation" section "to support Participants looking to **implement load mgmt. and V1G phased deployment of chargers.**"³ While this language appears to support at least some forms of flexible EV interconnection, it is not clear what the full scope of this change is as the updated Straw Proposal has not yet been shared with the EVIIWG. Thus, we recommend that the final Straw Proposal include clear language that phased interconnection agreements shall be offered as a standard option in the EV interconnection process for customers whose projects require grid upgrades.

II. Near-Term Adoption: Flexible EV Interconnection Policy Framework

In addition to the initial improvements to the EV interconnection process outlined in the Straw Proposal, the EVIIWG is the appropriate venue to consider the opportunities to scale flexible EV interconnection to significantly shorten energization timelines and unlock available distribution grid capacity across a wider portfolio of sites using a range of effective flexible EV interconnection strategies. Given this, we recommend that the next phase of the EVIIWG following completion of the Straw Proposal focus on answering the program design and utility operations questions needed to implement widespread flexible EV interconnection agreements as a standard tariff option for EV charging customers.

First, stakeholders will need to consider which forms of flexible interconnection agreements are acceptable to customers and can be implemented by the utilities, including through hearing directly from fleets, charging station operators, and charging management system providers. As noted in the previous section, flexible EV interconnection agreements can take many forms, including static load limits that shift only seasonally, fixed schedules that shift throughout the day, or dynamic limits that are set day-ahead. These options vary both in their complexity and their potential for making additional grid capacity available and the decision of which options to make available to customers will require stakeholders to consider what utility technology or process changes are needed before they can be offered. This also includes discussion of incentives for, and enforcement of, the agreements.

Second, a well-designed program should be easy for customers to learn about and access. These programs should have clear procedures in place to make customers aware of their options for flexible EV interconnection when they are requesting new or upgraded service. The EVIIWG can consider what marketing, education, and outreach efforts are warranted to support deployment of flexible interconnection.

³ Matter No. 24-00339, In the Matter of EV Infrastructure Interconnection Working Group, October 23 EVIIWG Presentations, at 24 (Oct. 23, 2024) (emphasis in original).

Third, the EVIIWG should discuss the impact of flexible EV interconnection agreements on the utilities load forecasting and system planning inputs and assumptions. Beyond simply being a bridge-to-wires solution to serve customers while grid upgrades are completed as usual, these agreements have significant potential to defer or mitigate the need for some of these upgrades. Some customers may be willing and able to remain under a flexible agreement indefinitely, avoiding the need for an upgrade entirely. In other situations, these agreements may allow the utility to forgo multiple incremental upgrades and instead complete a longer lead-time, more cost-effective solution. Making this a reality in the planning process will require reliable assumptions regarding the system impacts of flexible EV interconnection agreement, including anticipated use cases, duration, and scale. The EVIIWG is well-positioned to serve as the venue for the utilities to have these conversations with stakeholders.

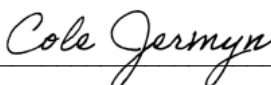
Finally, the EVIIWG can consider what reporting requirements are needed so that the Commission, Staff, and stakeholders can understand the scale and success of flexible EV interconnection agreements, including the system benefits, customer benefits, and associated costs.

While the complexity of these conversations precludes them from being completed before the finalization of the Straw Proposal this year, the work of the EVIIWG to date means that the group is well-positioned to begin these conversations as soon as possible. Therefore, we recommend the EVIIWG continue regular meetings following the finalization of the Straw Proposal, with a focus on addressing the questions necessary to implement flexible EV interconnection agreements at scale.

III. Conclusion

EDF, IREC, and VGIC thank the Commission and DPS for creating this working group and working with stakeholders to develop solutions for speeding the EV interconnection process in New York. We look forward to working collaboratively with DPS and other stakeholders to develop new procedures that will benefit utilities and interconnection customers, and help New York achieve its transportation electrification goals.

Respectfully submitted,



Cole Jermyn

Attorney, Environmental
Defense Fund



Mari Hernandez

Regulatory Program Director,
Interstate Renewable Energy
Council



Zach Woogen

Interim Executive Director,
Vehicle-Grid Integration Council